

ORDER SHEET**IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN
(JUDICIAL DEPARTMENT)****Case No. Writ Petition No. 10416 of 2021****Muhammad Akhtar****Versus****Ex-Officio Justice of Peace, etc.**

Sr.No.of order/ Proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary.
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15.07.2021

Mr. Muhammad Waseem Shahab, Advocate for petitioner.

Mr. Waseem-ud-Din Mumtaz, AAG on Court's call.

Through this petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner Muhammad Akhtar being father of Muhammad Salman (proposed accused of petition u/s 22-A/B, Cr.P.C.) has challenged the legality and propriety of order dated 30.06.2021 passed by the learned *ex-Officio* Justice of Peace, Multan, whereby, petition under Section 22-A/B, Cr.P.C. filed by respondent No.4 (hereinafter called the respondent) seeking registration of case against Muhammad Salman (son of the petitioner) was allowed and SHO concerned was directed to record statement of the respondent under section 154, Cr.P.C. and proceed further in accordance with law.

2. It is *inter alia* contended by learned counsel for the petitioner that the petitioner is father of Muhammad Salman against whom impugned order has been passed for the registration of case; that petitioner's son Muhammad Salman has been abducted and in this respect a criminal case FIR No. 192 dated 12.05.2018 under section 365, PPC has

already been registered at Police Station Karachi Company, Islamabad and his whereabouts are still not known as to whether he is alive or not? It has vociferously been argued that the petitioner is real father of Muhammad Salman and he falls within the definition of ‘*aggrieved person*’, for the reason, he has a *locus standi* to file the instant petition. In support of his contentions, learned counsel for the petitioner has placed reliance on the case laws reported as “Mrs. Ambreen Naseem Khawaja vs. Federation of Pakistan and others” (2015 P.Cr.L.J. 506), “Ardeshir Cowasjee and others vs. K.B.C.A. and others” (2001 YLR 2403) and “Ghazi Khan vs. ASJ/Justice of Peace, Lodhran” (2007 YLR 2842).

3. On the contrary, learned Law Officer has argued with vehemence that every person is responsible for his own deeds; that the petitioner do not fall within the remit of ‘aggrieved party or aggrieved person’, hence, no *locus standi* to challenge the impugned order.

4. The moot point for determination in this case is that as to whether the father of Muhammad Salman falls within the category of an “*aggrieved party*” or “*aggrieved person*” or he has any *locus standi* to challenge the supra mentioned order on behalf of his son or not?

5. So far as the case laws referred by learned counsel for the petitioner are concerned, they are not applicable in the peculiar circumstance of the instant case. The case law titled as “Mrs. Ambreen Naseem

Khawaja vs. Federation of Pakistan and others” (2015 P.Cr.L.J. 506) pertains to Constitutional petition filed for quashing of FIR against the accused by her mother as attorney, whereas, in the instant case the petitioner has no such power-of-attorney executed in his favor by his son Muhammad Salman (proposed accused in petition under section 22-A/B, Cr.P.C.). Similarly, in respect of other case law cited as “Ardeshir Cowasjee and others vs. K.B.C.A. and others” (2001 YLR 2403) is concerned, in this judgment aggrieved and aggrieved party has been defined and it has been held that expression “aggrieved person means individual who claims to be aggrieved person can only be so if he can show in what way would the action of the other party would cause him personal loss”, whereas, in the instant case, the petitioner has no personal loss. The last case law referred by learned counsel for the petitioner as “Ghazi Khan vs. ASJ/Justice of Peace, Lodhran” (2007 YLR 2842) is regarding setting aside the order passed by learned *ex-officio* Justice of Peace wherein the application filed u/s 22-A/B, Cr.P.C. was turned down and assailed through Constitutional petition.

6. Although the jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, in the matters relating to quashing of FIRs, is almost settled, but leaving that aspect aside, this Court would confine to the legal question (“aggrieved party” or “aggrieved person and locus standi”). There is no cavil to the

proposition that jurisdiction of this Court is conceived and regulated through Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 and it is *sine qua non* for initiation of proceedings under Article 199 of the Constitution that the petitioner should have a *locus standi* to institute the proceedings or in other words the petitioner should be an aggrieved person or aggrieved party from the impugned action. The Hon'ble Supreme Court of Pakistan has already settled the issue through its landmark judgments reported as "Mian Fazal Din vs. Lahore Improvement Trust, Lahore" (PLD 1969 SC 223) and "Dr. Imran Khattak and another vs. Ms. Sofia Waqar Khattak, PSO to Chief Justice and others" (2014 SCMR 122).

Similarly, the same view has also been repeated by this Court in a Full Bench Judgment reported as "Mst. Nazia vs. State through SHO and others" (PLD 2019 Lahore 373) wherein it has been held as under:-

"...On the touchstone, the learned counsel were specifically asked as to how the petitioner is aggrieved of registration of an F.I.R, wherein, she is alleged to be an abductee or may also be called as prosecution's star witness but surely not an accused of the occurrence reported therein, but the learned counsel have not been able to come out with any answer. We are however, convinced that petitioner (abductee) or any witness of the FIR, cannot be termed as "aggrieved party" as by no stretch of imagination it can be said that any of their fundamental right is infringed by registration of FIR; they have suffered any loss; they have been wrongfully deprived or refused something which they were legally entitled to, or any restriction has been imposed upon them. Consequently, we hold that abductee/witness do not fall within the

definition of “aggrieved party” to maintain a writ petition to seek quashing of FIR. The Office objection, therefore, upheld.”

7. Furthermore, learned counsel for the petitioner himself stated at bar that the petitioner is not confirmed whether the petitioner’s son Muhammad Salman (proposed accused) is alive or not. In this backdrop, the petitioner being father of the proposed accused namely Muhammad Salman cannot be termed as “*aggrieved party or aggrieved person*” and by no stretch of imagination it can be said that any of his fundamental right is infringed, he has suffered any loss. Record further depicts that the petitioner has no Power-of-Attorney of his son Muhammad Salman (proposed accused); similarly, it has been ordained in the last address of Holy Prophet *Hazrat Muhammad* (p.b.u.h) known as “*Khutba Hajjatul Wida*” that father is not responsible for the deeds of his son, as well as, son is not responsible for the act of his father, therefore, taking guidance from the supra mentioned quotation of law by last prophet *Hazrat Muhammad* (p.b.u.h) this Court is of the view, that the father is not responsible for the wrongdoing of his son. Hence, there is no occasion to hold that the petitioner is “*aggrieved person or aggrieved party*” and has no *locus standi* to challenge the impugned order through its Constitutional jurisdiction. A reference in this respect may also be made to the case laws reported as “Ch. Safdar Mumtaz Sandhu vs. Government of the Punjab through Chief Secretary, Punjab and others” (PLD 2009 Lahore 1),

“Province of Balochistan through Secretary Excise and Taxation Department Civil Secretariat, Quetta and two others vs. Murree Brewery Company LTD through Secretary” (PLD 2007 SC 386).

8. Even otherwise, learned *ex-Officio* Justice of Peace being a quasi-judicial forum had to pass such like orders judiciously and he has rightly appreciated the controversy between the parties keeping in view the documentary evidence. Learned counsel for the petitioner has not been able to point out any illegality, irregularity of procedure or perversity of reasoning in the impugned order, which is unexceptional and thus, calls for no interference by this Court.

9. For what has been discussed above, the petition in hand is devoid of any force, the same stands **dismissed in limine**.

(Muhammad Tariq Nadeem)
Judge

Khurram*

Approved for reporting

Judge